

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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JENNIFER FELIZ, as Administratrix of the Estate of  
YOSKAR FELIZ, deceased,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. JESUS N. RAMOS,  
Shield No. 6131, Individually and in his Official  
Capacity, P.O. FERNANDO A. GARZA, Shield No.  
5759, Individually and in his Official Capacity, P.O.  
JOHN C. CURZIO, Shield No. 13515, Individually and  
in his Official Capacity, POLICE OFFICERS "JOHN  
DOE" #1-10, Individually and in their Official Capacity  
(the name John Doe being fictitious, as the true names  
are presently unknown),

Defendants.

-----X

**SUMMONS**

Jury Trial Demanded

Plaintiff designates Bronx County  
as the place of trial.

The basis of venue is:  
CPLR § 504(3)

**To the above-named Defendants:**

**You are hereby summoned** to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK  
January 31, 2023

  
COHEN & FITCH LLP  
*Attorneys for Plaintiff*  
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New York, N.Y. 10279  
(212) 374-9115

By: Ilyssa S. Fuchs, Esq.  
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TO:

SYLVIA HINDS-RADIX  
Corporation Counsel of the City of New York  
100 Church Street  
New York, New York 10007

DET. JESUS N. RAMOS, Shield No. 6131  
47<sup>th</sup> Precinct  
4111 Laconia Ave.  
Bronx, NY 10466

P.O. FERNANDO A. GARZA, Shield No. 5759  
47<sup>th</sup> Precinct  
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P.O. JOHN C. CURZIO, Shield No. 13515  
47<sup>th</sup> Precinct  
4111 Laconia Ave.  
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SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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JENNIFER FELIZ, as Administratrix of the Estate of  
YOSKAR FELIZ, deceased,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. JESUS N.  
RAMOS, Shield No. 6131, Individually and in his  
Official Capacity, P.O. FERNANDO A. GARZA,  
Shield No. 5759, Individually and in his Official  
Capacity, P.O. JOHN C. CURZIO, Shield No.  
13515, Individually and in his Official Capacity,  
POLICE OFFICERS "JOHN DOE" #1-10,  
Individually and in their Official Capacity (the name  
John Doe being fictitious, as the true names are  
presently unknown),

Defendants.

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**VERIFIED COMPLAINT**

**Jury Trial Demanded**

**BASIS FOR VENUE:  
CPLR § 504 (3)**

Plaintiff JENNIFER FELIZ, as Administratrix of the Estate of YOSKAR FELIZ,  
deceased, by her attorneys COHEN & FITCH LLP, complaining of the defendants, respectfully  
allege as follows:

**PRELIMINARY STATEMENT**

1. This is, *inter alia*, a civil rights and wrongful death action in which plaintiff  
JENNIFER FELIZ, as the Administratrix of the Estate of Plaintiff-Decedent YOSKAR FELIZ,  
together with other distributees of plaintiff-decedent's Estate as defined in EPTL §4.1.1, seek  
relief for defendants' violations of plaintiff-decedent's rights, privileges, and immunities secured  
by 42 U.S.C. §1983, the Fourth, Fifth, and Fourteenth Amendments to the United States  
Constitution and the Constitution and laws of the State and City of New York.

2. It is alleged that the defendants, acting jointly and severally, committed a series of unlawful acts that culminated in the shooting death of Yoskar Feliz, a twenty-seven (27) year-old son, and brother, on January 20, 2022, and, in so doing, deprived him of rights secured by the United States Constitution, federal law, and the Constitution and laws of the City and State of New York.

### **PARTIES**

3. Plaintiff-decedent, YOSKAR FELIZ, deceased, was at all relevant times a resident of the County of Bronx, City, and State of New York.

4. Plaintiff JENNIFER FELIZ, the sister of the decedent, as Administratrix of the Estate of YOSKAR FELIZ, deceased, is and was at all relevant times a resident of the County of Bronx, City, and State of New York.

5. Plaintiff-decedent, YOSKAR FELIZ, died on January 20, 2022.

6. Plaintiff-decedent, YOSKAR FELIZ, died intestate and was survived by his distributees as defined by EPTL §4.1.1.

7. The Decree granting Limited Letters of Administration and appointing plaintiff JENNIFER FELIZ as the Administratrix of the Estate of Yoskar Feliz was issued by Surrogate's Court, County of Bronx, on October 24, 2022.

8. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

9. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department ("NYPD"), duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York

State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

10. That at all times hereinafter mentioned the individually named defendants, DET. JESUS N. RAMOS, Shield No. 6131, P.O. FERNANDO A. GARZA, Shield No. 5759, P.O. JOHN C. CURZIO, Shield No. 13515, and POLICE OFFICERS “JOHN DOE” #1-10, (the name John Doe being fictitious, as the true names are presently unknown), were duly sworn police officers of the NYPD and were acting under the supervision of said department and according to their official duties.

11. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

#### **JURISDICTION AND VENUE**

14. This action is brought pursuant to New York State and New York City Law, 42 U.S.C. Act of 1871, §§ 1983 and 1988, including its Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, *inter alia*.

15. Venue is proper in this county as the transactions and occurrences took place in Bronx County, City, and State of New York.

16. On or about February 11, 2022, within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

17. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

18. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on or about June 22, 2022.

19. Thereafter, on or about October 26, 2022 (and within (90) days after plaintiff JENNIFER FELIZ's appointment as Administratrix of the Estate of Yoskar Feliz on October 24, 2022) plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

20. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such October 26, 2022 claim as aforesaid.

21. Defendant THE CITY OF NEW YORK advised that the hearing pursuant to General Municipal Law § 50-h previously held on June 22, 2022, would suffice as it related to the October 26, 2022 Notice of Claim filing as defendant had already obtained plaintiff JENNIFER FELIZ's testimony, and thus no further hearing would be required or held.

22. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

23. Plaintiff has complied with all conditions precedent to maintaining the instant action.

24. This action falls within one or more of the exceptions as outlined in CPLR §1602.

### **FACTS**

25. On or about January 20, 2022, at approximately between 1:30 and 2:00 p.m., plaintiff-decedent YOSKAR FELIZ was lawfully present in the vicinity of Shoelace Park, located in the vicinity of Bronx Blvd. and E. 224<sup>th</sup> St., Bronx, NY.

26. At the aforesaid time and place, plaintiff-decedent was accosted by law enforcement officers namely, – defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10, who violated plaintiff-decedent's rights, including his New York State and City rights and his constitutional rights to be free from the use of assault and battery and use of excessive force, *inter alia*.

27. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10, upon information and belief, forcibly assaulted plaintiff-decedent by intentionally discharging a total of ten (10) rounds from their service firearms at plaintiff-decedent during their interaction with plaintiff-decedent.

28. Specifically, upon information and belief, defendant RAMOS discharged five (5) shots from his service firearm at plaintiff-decedent, defendant GARZA discharged four (4) shots from his service firearm at plaintiff-decedent, and defendant CURZIO discharged one (1) shot from his service firearm at plaintiff-decedent.

29. Upon information and belief, some, or all, of the aforementioned shots struck plaintiff-decedent multiple times about his body and in various locations on his body.

30. Upon information and belief, several of the shots discharged at plaintiff-decedent by defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 were discharged as plaintiff-decedent was facing away from said defendants and at a time when plaintiff-decedent posed no threat of imminent injury to any officer or person.

31. Upon information and belief, several of the shots discharged at plaintiff-decedent by defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 were discharged as plaintiff-decedent was retreating away from said defendants with his back turned and/or after he has been shot several times and was already falling down as he succumbed to the numerous gunshot wounds.

32. Further, upon information and belief, none of the shots discharged at plaintiff-decedent by defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 were justified, nor were these shots discharged at plaintiff-decedent a time when plaintiff-decedent posed any imminent or serious threat of injury or harm to any officer or other person.

33. Upon information and belief, plaintiff-decedent ultimately fell into the Bronx River.

34. Thereafter, upon information and belief, defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10, immediately placed plaintiff-decedent in handcuffs and began to search his person and the surrounding area instead of providing the emergent and immediate medical assistance plaintiff-decedent needed at the time.

35. This delay, and the above-mentioned defendants' failure to prioritize and obtain the emergent and immediate life-saving medical attention plaintiff-decedent needed, evidenced a deliberate indifference to plaintiff-decedent's medical needs.

36. At no time was the force used against plaintiff-decedent by defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 reasonable and/or justified under the circumstances.

37. At no time did defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 intervene to prevent defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 from engaging in unreasonable and unjustified force.

38. As a result of the foregoing, plaintiff-decedent sustained severe injuries that ultimately caused his death on January 20, 2022.

39. As a result of the foregoing, plaintiff-decedent sustained conscious pain and suffering from the above-referenced defendants' actions up until the time of his demise on January 20, 2022.

40. Defendant THE CITY OF NEW YORK through its unconstitutional policies, negligent training, hiring, and retention of its employees, deprived plaintiff-decedent of his rights under state and federal law, and is otherwise liable under the theory of *respondeat superior* for plaintiff-decedent's conscious pain and suffering, and serious injuries that led to plaintiff-decedent's death.

**[INTENTIONALLY LEFT BLANK]**

**FIRST CLAIM FOR RELIEF**  
**DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

42. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

43. All of the aforementioned acts deprived plaintiff-decedent of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

44. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

46. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

47. As a direct and proximate result of the foregoing, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension,

embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent's death.

**SECOND CLAIM FOR RELIEF**  
**EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

48. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

49. The level of force employed by defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 was objectively unreasonable and in violation of the constitutional rights of the plaintiff-decedent.

50. As a direct and proximate result of the foregoing, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent's death.

**THIRD CLAIM FOR RELIEF**  
**FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

52. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 had an affirmative duty, and the opportunity to intercede when plaintiff-decedent's constitutional rights were being violated in defendants' RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 presence by the use of excessive force.

53. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 further violated plaintiff-decedent's constitutional rights when they failed to

intercede and prevent the violation or further violation of plaintiff-decedent's constitutional rights and the injuries or further injuries caused as a result of said failure.

54. As a result of the defendants' RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 failure to intercede when plaintiff-decedent's constitutional rights were being violated in defendants' RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 presence, plaintiff-decedent sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain, and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent's death.

**FOURTH CLAIM FOR RELIEF**  
**DELIBERATE INDIFFERENCE TO PLAINTIFF'S MEDICAL NEEDS**  
**UNDER 42 U.S.C. § 1983**

55. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

56. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10, immediately placed plaintiff-decedent in handcuffs and began to search his person after he had been shot multiple times and required immediate medical attention.

57. As a result, defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 delayed providing plaintiff-decedent with critical medical attention.

58. In so doing, defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 exhibited a deliberate indifference to the health, welfare, and medical needs of plaintiff-decedent, in violation of plaintiff-decedent's constitutional rights as secured by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

59. As a direct and proximate result of the foregoing, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent's death.

**FIFTH CLAIM FOR RELIEF**  
**MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

61. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

62. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department, and the New York City Department of Corrections include, but are not limited to, the following unconstitutional practices:

- i. being deliberately indifferent to the health, welfare, and medical needs of arrestees and otherwise depriving arrestees of their constitutional rights; and,
- ii. showing deliberate indifference to the training of NYPD officers as to how to respond to situations involving arrestees who require immediate medical attention; and,
- iii. handcuffing all hospitalized arrestees/prisoners for the entirety of their hospitalization regardless of their risk of flight or safety risk to others; and,
- iv. utilizing excessive force in effectuating arrests when there is no excuse or justification for any such force; and,
- v. failing to intercede to prevent violations of plaintiff-decedent's

constitutional rights; and,

- vi. fabricating evidence in connection with investigations of misconduct in order to cover up said misconduct and/or avoid repercussions; and,
- vii. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, use excessive force, and/or commit perjury in order to cover up police misconduct.

63. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department, and the New York City Department of Corrections constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiff-decedent.

64. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department, and the New York City Department of Corrections were the direct and proximate cause of the constitutional violations suffered by the plaintiff-decedent as alleged herein.

65. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department, and the New York City Department of Corrections were the moving force behind the constitutional violations suffered by the plaintiff-decedent as alleged herein.

66. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff-decedent's constitutional rights.

67. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff-decedent's constitutional rights.

68. The acts complained of deprived the plaintiff-decedent of his right:

- i. To receive timely and adequate medical care;
- ii. Not to have summary punishment imposed upon him; and
- iii. To receive equal protection under the law.

**PENDANT STATE CLAIMS**

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
ASSAULT**

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

70. Defendants' RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 aforementioned actions placed plaintiff-decedent in apprehension of imminent harmful and offensive bodily contact.

71. As a direct and proximate result of the foregoing, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent's death.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
BATTERY**

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

73. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 touched plaintiff-decedent in a harmful and offensive manner.

74. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 did so without privilege or consent from plaintiff-decedent.

75. As a direct and proximate result of the foregoing, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent's death.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**NEGLIGENCE/GROSS NEGLIGENCE/RECKLESSNESS**

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

77. Defendant THE CITY OF NEW YORK, through its employees, agents, and/or representatives, to wit defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10, committed the foregoing acts.

78. Defendant THE CITY OF NEW YORK through its employees, agents, and/or representatives, to wit defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10, did not take any meaningful steps to prevent the foregoing from occurring.

79. At all times herein defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 were acting in the scope of their employment.

80. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 were negligent, grossly negligent, reckless, and/or careless when they committed the foregoing acts of *inter alia*, shooting plaintiff-decedent.

81. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 were negligent, grossly negligent, reckless, and/or careless in that defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 failed to take

steps to avoid the occurrence; and were otherwise negligent, grossly negligent, careless, and reckless; and, when they failed to prevent the foregoing acts from occurring.

82. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 had a duty of care in their interactions with plaintiff-decedent as a person they were taking into custody.

83. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 violated their duty of care, which was a direct and proximate cause in bringing about the plaintiff-decedent’s conscious pain and suffering and severe injuries that led to his death.

84. The foregoing incidents and the resulting injuries/death to plaintiff-decedent were caused solely and as a direct and proximate cause of the carelessness, negligence, gross negligence, and/or recklessness on the part of the defendant THE CITY OF NEW YORK, their servants, agents, employees, and/or licensees, to wit, the defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 and without any negligence on the part of the plaintiff-decedent contributing thereto.

85. As a direct and proximate result of the foregoing, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent’s death.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

86. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

87. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

88. The aforementioned conduct was committed by the individually named defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

89. The aforementioned conduct was committed by the individually named defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

90. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff-decedent.

91. As a direct and proximate result of the foregoing, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent’s death.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

92. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

93. By the reason of the foregoing conduct herein alleged, and failing to prevent other defendants officers from doing so, defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 committed conduct that inflicted emotional distress upon the plaintiff-decedent.

94. That the negligent infliction of emotional distress by defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 was unnecessary and unwarranted in the performance of their duties as police officers.

95. Defendants their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon the plaintiff-decedent.

96. Defendant THE CITY OF NEW YORK as employer of defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

97. As a direct and proximate result of the foregoing, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent's death.

**SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

98. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

99. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

100. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

101. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

102. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

103. As a direct and proximate result of the foregoing negligence of the defendants as set forth above, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent's death and is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

**SEVENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
CONSCIOUS PAIN AND SUFFERING**

104. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

105. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10, without just cause, used force and/or deadly force against plaintiff-decedent. The use of such force was not justified under the circumstances and constituted unreasonable and unnecessary force.

106. Defendant THE CITY OF NEW YORK is responsible for the actions of defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS "JOHN DOE" #1-10 that were taken in the scope of their employment as police officers.

107. The use of such force did not immediately cause plaintiff-decedent's death. As a result, he suffered and experienced a fear of impending death, severe emotional distress, and conscious pain and suffering.

**EIGHTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
WRONGFUL DEATH**

108. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

109. The plaintiff JENNIFER FELIZ, as Administratrix of the Estate of YOSKAR FELIZ, deceased, seeks damages for the injuries, pain, and suffering, that were sustained by plaintiff-decedent before he died that they could have pursued in court if death had not occurred, and any other damages stemming from his death as applicable under New York State Wrongful Death Statute.

110. As a result of the negligence, acts and omissions, misconduct, and abuse as described above on the part of the defendants, their agents, servants, and/or employees, plaintiff-decedent YOSKAR FELIZ was caused to suffer severe emotional pain and serious injuries that led to his death on January 20, 2022.

111. That plaintiff-decedent was survived by his distributees pursuant to EPTL §4.1.1., who suffered pecuniary and other injuries as defined by EPTL §5-4.3.

112. That plaintiff JENNIFER FELIZ, individually, and as Administratrix of her deceased brother's Estate, brings this claim on behalf of all distributees of the Estate of YOSKAR FELIZ, deceased, for pecuniary injuries that are recoverable under New York State Law.

113. That defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 while acting within the scope and course of their employment with defendant THE CITY OF NEW YORK had a duty of care in their interactions with plaintiff-decedent, they violated their duty of care, which was a direct and proximate cause in bringing about the plaintiff-decedent’s death.

114. Specifically, defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10, upon information and belief, forcibly assaulted plaintiff-decedent by discharging a total of ten (10) rounds from their service firearms during their interaction with plaintiff-decedent. Upon information and belief, defendant RAMOS discharged five (5) shots from his service firearm, defendant GARZA discharged four (4) shots from his service firearm, and defendant CURZIO discharged one (1) shot from his service firearm, striking plaintiff-decedent multiple times about his body. Upon information and belief, several of the shots discharged at plaintiff-decedent by defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 were discharged as plaintiff-decedent was facing away from said defendants and was attempting to surrender.

115. Due to the negligence and otherwise wrongful conduct of defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10, said defendants and the CITY OF NEW YORK as employer are liable for the injuries, pain, and suffering, that was sustained by plaintiff-decedent before he died and for pecuniary injuries resulting from plaintiff-decedent's death and any other damages that are recoverable under the New York State Law.

116. As a result of the foregoing, plaintiff JENNIFER FELIZ, as the Administratrix of the Estate of Plaintiff-Decedent YOSKAR FELIZ, together with other distributees of plaintiff-decedent’s Estate as defined in EPTL §4.1.1. have been damaged in an amount that exceeds the

jurisdictional limits of all other courts which would otherwise have had jurisdiction and asks for an award of money damages as a just compensation.

**PENDANT CITY LAW CLAIMS PURSUANT TO  
2021 N.Y.C. LOCAL LAW NO. 48, N.Y.C. ADMIN. CODE §§ 8 – 8802, ET SEQ.**

**FIRST CLAIM FOR RELIEF UNDER N.Y.C. LAW  
VIOLATION OF AC-8-8802 RIGHTS – EXCESSIVE FORCE**

117. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

118. The acts of defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

119. The acts of RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 caused plaintiff-decedent to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

120. That defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully used excessive force against plaintiff-decedent causing serious injuries, conscious pain, and suffering, and ultimately the death of plaintiff-decedent.

121. As a direct and proximate result of the foregoing negligence of the defendants as set forth above, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person

that led to plaintiff-decedent's death and is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

**SECOND CLAIM FOR RELIEF UNDER N.Y.C. LAW**  
**VIOLATION OF AC-8-8802 RIGHTS – FAILURE TO INTERVENE**

122. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

123. The acts of defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

124. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 had a duty to protect plaintiff-decedent from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

125. The defendants that did not engage in excessive force against plaintiff-decedent, but were present when other officers violated plaintiff-decedent's right against the use of excessive force had an affirmative duty to intervene on behalf of plaintiff-decedent, whose constitutional rights were being violated in their presence by other officers.

126. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff-decedent from a violation of his rights.

127. As a direct and proximate result of the foregoing negligence of the defendants as set forth above, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress,

mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent's death and is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

**THIRD CLAIM FOR RELIEF UNDER N.Y.C. LAW  
VIOLATION OF AC-8-8802 RIGHTS – CITY LIABILITY EXCESSIVE FORCE**

128. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

129. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

130. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 is liable to the plaintiff-decedent for the wrongdoing of the covered individual defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10.

131. The acts of defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

132. The acts of RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 caused plaintiff-decedent to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

133. That defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully used excessive force against plaintiff-decedent causing serious injuries, conscious pain, and suffering, and ultimately the death of plaintiff-decedent.

134. As a direct and proximate result of the foregoing negligence of the defendants as set forth above, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent’s death and is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

**FOURTH CLAIM FOR RELIEF UNDER N.Y.C. LAW**  
**VIOLATION OF AC-8-8802 RIGHTS – CITY LIABILITY FAILURE TO INTERVENE**

135. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

136. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

137. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 is liable to the plaintiff-decedent for the wrongdoing of the covered individual defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10.

138. The acts of defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

139. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 had a duty to protect plaintiff-decedent from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

140. The defendants that did not engage in excessive force against plaintiff-decedent, but were present when other officers violated plaintiff-decedent’s right against the use of excessive force had an affirmative duty to intervene on behalf of plaintiff-decedent, whose constitutional rights were being violated in their presence by other officers.

141. Defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff-decedent from a violation of his rights.

142. As a direct and proximate result of the foregoing negligence of the defendants as set forth above, plaintiff-decedent, sustained, *inter alia*, loss of life, liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and severe gunshot wounds to his person that led to plaintiff-decedent’s death and is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

**PUNITIVE DAMAGES**

143. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

144. The acts of defendants RAMOS, GARZA, CURZIO, and/or POLICE OFFICERS “JOHN DOE” #1-10 were willful, wanton, malicious, and oppressive, and resulted in the harm to plaintiff-decedent as outlined herein. Such acts, therefore, warrant an award of punitive damages.

**WHEREFORE**, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. an order of equitable relief;
- iv. reasonable attorneys’ fees and costs under 42 U.S.C. §1988 and/or the New York City Administrative Code (“City Law”); and,
- v. directing such other and further relief as the Court may deem just and proper, together with attorneys’ fees, interest, costs, and disbursements of this action.

Dated: New York, New York  
January 31, 2023

Cohen & Fitch LLP  
BY:   
Ilyssa S. Fuchs, Esq.  
Gerald M. Cohen, Esq.  
Joshua P. Fitch, Esq.  
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**ATTORNEY'S VERIFICATION**

**ILYSSA S. FUCHS**, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff in the within-entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information is investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York  
January 31, 2023

  
\_\_\_\_\_  
**ILYSSA S. FUCHS**